TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

Subchapter C—Management of Wildlife Conservation Areas

PART 31—PACIFIC REGION

SUBPART—NINEPIPE AND PABLO NATIONAL WILDLIFE REFUGES, MONTANA

FISHING

On October 15, 1949, notice of proposed rule-making regarding proposed revisions of the fishing regulations relating to the Ninepipe and Pablo National Wildlife Refuges, Montana, was published in the FEDERAL REGISTER (14 F. R. 6292).

After consideration of all relevant matter regarding the proposed amendment, the following amendments are hereby adopted, to be effective immediately upon publication of this document in the FEDERAL REGISTER.

1. Section 31.251 is amended to read as follows:

§ 31.251 *Fishing permitted.* Noncommercial fishing is permitted on the waters of the Ninepipe and Pablo National Wildlife Refuges, Montana, during the daylight hours of the periods from January 1 to the last day of February, inclusive, and from July 15 to December 31, inclusive, in any year, except that fishing is prohibited during the open season for the hunting of migratory birds, in accordance with the laws and regulations of the State of Montana, subject to such regulations as may be prescribed by the Office of Indian Affairs, subject to the regulations in Parts 18 and 21 of this chapter, and subject further to the conditions and restrictions in §§ 31.252 to 31.256. (50 CFR 21.41, 13 F. R. 9351)

2. The following sections are added:

§ 31.255 *Use of boats prohibited.* The use of canoes, boats, or floating devices of any description is prohibited on all waters of these refuges except for official purposes. (50 CFR 21.41, 13 F. R. 9351)

§ 31.256 *Temporary restrictions.* The officer in charge may temporarily suspend fishing in all or parts of the refuge areas by suitable posting when, in his judgment, such action is necessary for the protection of migratory waterfowl, wildlife concentrations, fishes and other aquatic animal life, food and cover plantings for wildlife, or for the carrying out of official operations in such area or areas.

(50 CFR 21.41, 13 F. R. 9351)

Dated: December 1, 1949.

O. H. JOHNSON,
Acting Director.

[F. R. Doc. 49-9758; Filed, Dec. 6, 1949; 8:48 a. m.]

NOTICES

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

PROCLAMATION ESTABLISHING A RESERVE FOR THE NATIVE INHABITANTS OF THE VILLAGE OF BARROW, ALASKA

By virtue of the authority vested in the Secretary of the Interior by section 2 of the act of May 1, 1936 (49 Stat. 1250, U. S. C. title 48, sec. 358a), the following described public lands in Alaska are hereby withdrawn from settlement, location, sale, or entry, and reserved to the Native Village of Barrow, Alaska, namely, all that area bounded as follows:

Beginning at a point on the east end of Peard Bay on the Arctic Coast of Alaska, 100 yards west of a cabin, in approximate latitude 70°50′ N., longitude 158°20′ W.; thence south 2 miles; thence northeasterly following a line parallel to and 2 miles distant from the shore of the Arctic Ocean to a point due east of a point on the shore 2 miles northeasterly of the Village of Sinaru; thence due east to the west shore of Dease Inlet; thence northeasterly, westerly and southwesterly along the shore, at extreme low tide, of Dease Inlet, the Arctic Ocean, and Peard Bay to the point of beginning, together with all rocks and islands within 10 miles of the said shore.

Together with the following area, to be designated as the Barrow Coal Reserve, namely, all that area bounded as follows:

Beginning at a point one mile north of a point on the west bank of the Meade River about 10 miles south of the big bend of that river and opposite the Eskimo village site of Atkasuk, at approximate longitude 157°6′ W., latitude 70°30′ N., thence one mile east, thence two miles south, thence two miles west, thence two miles north, thence one mile east to the point of beginning.

The foregoing order is estimated to cover approximately 750 square miles.

All oil and gas deposits underlying the lands withdrawn by this order are reserved to the United States.

This order shall be subject to the following prior withdrawals:

(1) Executive Order of May 4, 1907, reserving an area at Barrow for school purposes, now designated as U. S. Survey No. 2244, embracing 8.96 acres.

(2) Executive Order No. 3797–A of February 27, 1923, establishing a naval petroleum reserve, as amended by Public Land Order No. 289 of July 20, 1945.

(3) Executive Order No. 6132 of May 15, 1933, which withdrew 14.1 acres of land at Point Barrow for use as a radio station by the War Department.

(4) Public Land Order No. 151 of July 19, 1943, which withdrew 1.7 acres of land near Barrow as Air Navigation Site No. 205 for the use of the Civil Aeronautics Administration, Department of Commerce.

This order shall be further subject to any valid existing rights or claims acquired prior to the date hereof and shall become effective only upon its approval by a majority vote of the natives residing in the above-described area, voting in the manner prescribed in the said section 2 of the act of May 1, 1936.

This order is also subject to the condition that a relinquishment be filed with the United States by duly authorized representatives of the native inhabitants of the Village of Barrow, acting in their behalf, relinquishing all claims of said villagers or any clans, families or subdivisions thereof to present possessory rights to lands outside the area herein reserved.

This proclamation shall in no way impair the right of the Natives of the Village of Barrow, through their municipal organization or otherwise, to manage their own economic and political affairs and otherwise to exercise all rights of citizenship.

Done in the city of Washington, D. C., this 30th day of November 1949.

J. A. KRUG,
Secretary of the Interior.

[F. R. Doc. 49-9754; Filed, Dec. 6, 1949; 8:45 a. m.]

ORDER DESIGNATING RESERVATION FOR THE INDIANS OF HYDABURG, ALASKA

Pursuant to the authority vested in the Secretary of the Interior by section 2 of the act of May 1, 1936 (49 Stat. 1250, 48 U. S. C., 1946 ed., sec. 358a), it is ordered that the following described area, including the town reserve established for the native village of Hydaburg by Executive Order 4712 (August 30, 1927), shall be, and the same hereby is, designated as a reservation for the use and occupancy of the Indians of Hydaburg, Alaska:

Beginning at a point at the head of Soda Bay, approximate latitude 55°17′ N., longitude 132°55′ W.; from the initial point, at lowest low tide, westerly along the line of lowest low tide on the south shore of Soda Bay to a point opposite Halibut Nose; southeasterly along the line of lowest low tide on the north shore of North Pass and the east shore of Sukkwan Strait to Eek Point; northerly along the line of lowest low tide on the west shore of Hetta Inlet to a point one mile above Deer Bay; northerly and westerly along the divide at the head of the drainage into Sukkwan Strait and North Pass to the point of beginning; and Sukkwan Island; and including the rocks and islets within 3,000 feet from such shores; and further including all lakes within the foregoing areas, all inlets where the distance from shore to shore is less than 1,000 feet, all streams, and the waters within 500 yards of the mouth of each such stream as defined pursuant to the act of April 16, 1934 (48 Stat. 594, 48 U. S. C., 1946 ed., secs. 232, 233); and also including the waters and submerged lands adjacent to such uplands and extending 3,000 feet from the shore line at mean low tide; and also including the cemetery on island